

TERMS AND CONDITIONS OF USE AND PRIVACY POLICY STATEMENT

TERMS AND CONDITIONS OF USE

Please read these Terms and Conditions carefully before using the National Gas Metering Web Portal (referred to in these Terms and Conditions as the "Site").

Your access and use of the Site is subject to these Terms and Conditions, and by using and accessing the Site, you signify your agreement with them.

These Terms and Conditions may be changed from time to time.

This Site is operated and managed by National Gas Metering Limited ("NGM") on behalf of National Gas Transmission plc ("NGT"). For the purposes of these Terms and Conditions "NG Group" means NGT and NGM.

RIGHT OF ACCESS

The Site is available to and may be used only by those users who have been provided with access via a secure password by the Site system administrator. You must be satisfied that you may lawfully access the Site, read the pages and/or act upon the material contained in the pages.

NGM and NGT accept no responsibility for unauthorised access or actions by you in respect of these matters.

NGM and NGT reserves the right to terminate your access to and use of the Site (or any part of the Site) immediately at any time if it believes, in its sole discretion, that you have breached these Terms and Conditions or that you have otherwise abused the facility provided by the Site.

MONITORING

NGM and NGT reserves the right to monitor the content and details of any information provided on, to or via the Site. Monitoring will take place where and to the extent permitted by law and may include interception, recording and/or the removal of any information it deems to be inappropriate or unsuitable. These Terms and Conditions should be read in conjunction with the Privacy Policy Statement detailed below.

DATA

The Site allows you to view and verify information relating to NG Group's regulated meters (including the asset class, manufacturer, model, year of manufacture, meter point reference number, location etc.), book requests for meter work and raise address or meter queries. NGM and/or NGT may at any time modify, alter, delete and update any of the information on the Site (including the contents or appearance of the pages on the Site), refer you to other sites on the World Wide Web, or remove pages from its Site.

WARRANTIES & LIABILITY

NGM and NGT do not make any representations or warranties, express or implied, about the functionality provided through this Site, including any hypertext links or any other functions or media used either directly or indirectly from the Site. NGM and NGT do not accept any responsibility for enabling you to link to another site in the World Wide Web or for any other site.

You acknowledge and agree that the information contained on the Site is provided on an "as is" basis, that your use of the Site is at your own risk and that you are responsible for verifying that the information on the Site is correct, up-to-date and appropriate for your purposes.

To the fullest extent permitted at law, NGM and NGT do not represent that the information contained on the Site is accurate, comprehensive, verified or complete, and shall have no liability for the accuracy of the information contained on the Site or for delays or omissions therein or for any reliance placed by any person on the information.

To the fullest extent permitted at law, NGM and NGT shall not be liable for any claims or losses of any nature arising (whether directly or indirectly) from your use of the Site or otherwise howsoever arising.

INTELLECTUAL PROPERTY

All copyright in the Site content or in any information on the Site is, unless otherwise indicated, owned by either NGM or NGT.

You may download and print extracts (and re-copy such printed extracts) from the Site for the purposes of sending information to NG Group and for your reasonable internal business use. You must not modify, alter or delete any Site content except where required for the purposes of providing information to NG Group.

You must not send any Site content (or copies thereof) to any third party. The trademarks, logos and service marks displayed on this Site are owned and registered (where applicable) by NGM or NGT, as appropriate. No rights or licence is granted or may be implied by their display upon this Site.

GOVERNING LAW

These Terms and Conditions are governed, construed and subject to the law and exclusive jurisdiction of England and Wales.

PRIVACY POLICY STATEMENT

NGM and NGT are committed to respecting your privacy and to complying with applicable data protection and privacy laws. You can visit the Site without disclosing any personally identifiable information about yourself.

This Privacy Policy Statement explains how we collect, use and protect your information when you visit the Site. This notice should be read in conjunction with the Terms and Conditions detailed above.

Please take a few moments to read the sections below.

In order to be allowed access to the Site, we will give you a secure password. For the purposes of identification, we will need to know your contact details such as your name, the name of your employer, your business e-mail address and work telephone number. We will administer this information and make any changes that need to be made from time to time. For the purposes of Data Privacy Legislation NGM and/or NGT are the data controllers of personal data collected in order to access the site.

For the purposes of Data Privacy Legislation NGM and/or NGT are the data processors of personal data provided to contact consumers in relation to meter work requests and data queries.

If you submit transactions, we will need to know your name, e-mail address and work telephone number and an indication of the subject of your enquiry.

We gather this information to allow us to respond to you, maintain relevant databases and for reporting statistics. The relevant information is then used by us any agents, subcontractors, other companies in the NG Group and/or professional advisors to respond to you maintain relevant databases and/or report/collate statistics.

We may also use aggregate information and statistics for the purposes of monitoring Site usage in order to help us develop the Site and our services and may provide such aggregate information to third parties. These statistics will not include information that can be used to identify any individual.

Your information may, for any or all of the above purposes, be disclosed for processing to any or all of the following, in any country where NG Group operates:

Other users of the site;

Other NG Group companies;

Third party service providers who use your personal information to provide services to us; Auditors, contractors or other advisers of any NG Group company. We may use cookies to automatically log a users domain and IP address - a unique string of numbers that identifies a computer on the Internet) by programming.

This information does not identify you as an individual, but recognises, at the point of log-on, the computer that is being used to view the Site. Please refer to the Help guide from your browser for further guidance on cookies.

INFORMATION SECURITY

Please be aware that communications over the Internet, such as emails/web mails, are not secure unless they have been encrypted. Your communications may route through a number of countries before being delivered - this is the nature of the World Wide Web/Internet. Neither NGM nor NGT accepts responsibility for any unauthorised access or loss of personal information that is beyond our/its control.

We believe we have appropriate policies, rules and technical measures to protect the personal data that we have under our control (having regard to the type and amount of that data) from

unauthorised access, improper use or disclosure, unauthorised modification, unlawful destruction or accidental loss.

All our workers and third parties that have access to, and are associated with the processing of your personal information, are obliged to respect the privacy of your personal information.

We ensure that your personal information will not be disclosed to government institutions or authorities except if required by law or when requested to by regulatory bodies or law enforcement organisations. It is important that you tell us about any changes to your contact details so that we can update them accordingly.

If any of the information that you have provided to us changes please let us know the correct details through your Local Security Officer. By submitting your information you consent to the use of that information as set out in this Privacy Policy Statement. We reserve the right to amend or modify this Privacy Policy Statement at any time and in response to changes in applicable legislation. If we change our Privacy Policy Statement we will post the changes on this page, and place notices on other pages of the Site, so that you will be aware of the information we collect and how we use it. Continued use of the service will signify that you agree to any such changes.

It may be necessary to transfer your personal information to other companies located in countries outside of the European Economic Area (EEA)*. This may happen where, for example our servers or such companies are based outside of the EEA or where you use our services and products while visiting countries outside of the EEA.

The data protection and other laws of these countries may not be as comprehensive as those in the UK or the EU - in these instances we will take steps to ensure that your privacy rights are respected. By submitting your information you consent to these transfers. The EEA currently comprises Austria, Belgium, Denmark, France, Finland, Germany, Greece, Iceland, Ireland, Italy, Liechtenstein, Luxembourg, The Netherlands, Norway, Portugal, Spain, Sweden and the U.K.

MONITORING

NGM and NGT reserve the right to monitor the contents and details of email responses sent to any email address published on the Site. Monitoring will take place where and to the extent permitted by law and may include interception and recording.

We and/or any other NG Group member cannot be responsible for the privacy policies and practices of other websites even if you accessed the third party website using links from our Site or you linked to our Site from a third party website.

We recommend that you check the policy of each website you visit and contact the owner or operator of such website if you have any concerns or questions.

YOUR RIGHTS IN RELATION TO YOUR INFORMATION

You can write to us to obtain a copy of your information and to have any inaccuracies corrected. Please write to:

Data Protection Office
National Gas Metering
Pavilion Drive
Witton
Birmingham B6 7BB

In addition if you have any enquiry about this Privacy Policy Statement or our data protection practices, please write to the Data Protection Office at the above address.